



A COMMUNITY OF CHOICE

## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001  
(Phone) 307-637-6282 (Fax) 307-637-6366

### MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council  
From: Seth Lloyd, Senior Planner  
Subject: PUDC-24-106 / Edgar Subdivision / Preliminary Plat Appeal  
Date: September 23, 2024

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#### Background:

The item for consideration is a *Preliminary Plat*. This is typically approved by the Planning Commission and said approval is acknowledged by the City Council. In this case, the Planning Commission denied the Preliminary Plat outright. On September 12, 2024, the applicant requested in writing to appeal the Planning Commission's decision. According to the Unified Development Code, an appeal of the Planning Commission's decision goes to Council. As such, Council has the opportunity to uphold the Planning Commission's denial, or to overturn the denial.

Staff is requesting one of two motions:

- Move to uphold the denial
- Move to overturn the denial

Council may include any conditions they see fit on a motion to overturn to make the plat better meet review criteria.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral September 23, 2024
- Public Services Committee October 8, 2024
- Final consideration October 14, 2024

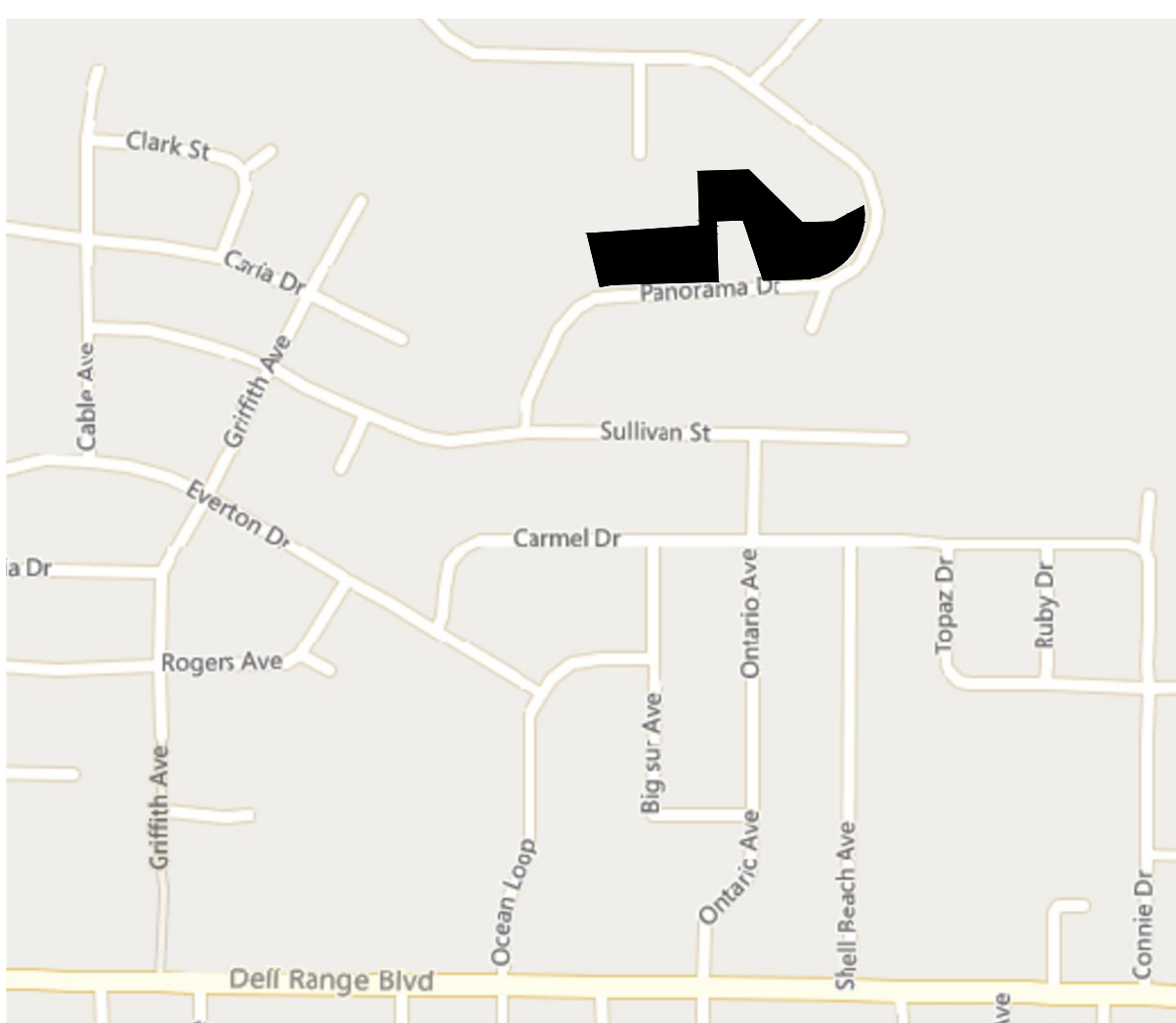
#### Planning Commission Recommendation:

The Planning Commission heard this item at their September 3, 2024 meeting and voted (by a vote of 4-1) to deny this application, due to failure to meet review criteria 2 and 8.

The Planning Commission Staff report is attached.

#### Attachments:

1. Preliminary Plat
2. Planning Commission Staff Report



LOCATION MAP

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SCALE: 1" = 500'

## DEDICATION

Know all men by these presents that Dan Edgar, owner in fee simple of a portion Lot 9, Block 4, View Point North 2nd Filing, located in the NE¼/SE¼ of Section 22, T.14N., R.66W., 6th P.M., City of Cheyenne, Laramie County, Wyoming, said parcel more particularly described as follows: the following described property:

Commencing at City of Cheyenne Control Monument "Braehill", thence S64°20'23"E, 871.67 feet to a NE corner of said Lot 9, being a found aluminum cap monument and the POINT OF BEGINNING of this parcel description; thence N88°20'10"E along the South line of Lots 20 and 14 of said Block 4 of said View Point North 2nd Filing, 134.96 feet to the SW corner of Lot 13 of said Block 4; thence S45°16'42"E along the South lines of Lots 13, 12, 11 and 10 of said Block 4, 200.21 feet to an angle point on the South line of Lot 10, said Block 4; thence continue along said South line the following two courses: N88°11°23'7"E, 84.80 feet; thence N61°56°39"E, 90.23 feet to intersect the Westerly right-of-way line of Panorama Drive; thence along said Westerly right-of-way line on an arc of 9°59°10'0"E tangent to the right 287.53 feet, said curve having a radius of 170.16 feet, central angle of 96°48'58" and a chord bearing S39°57°10"W, 254.52 feet; thence S88°21°39'W along said Northerly right-of-way line, 104.31 feet; thence departing said Northerly right-of-way line, N18°30°37'W, 168.97 feet; thence S88°21°41'W, 71.94 feet; thence S1°54°13"E, 161.70 feet to a point on said Northerly right-of-way line, thence thence S88°21°39'W, 266.00 feet to a point of tangency; thence continuing along said Northerly right-of-way line, an arc of 12°05'22"E tangent to the right 49.39 feet, said curve having a radius of 233.62 feet, central angle of 12°05'22" and a chord bearing S82°14°12'W, 49.30 feet to a point; thence departing said Northerly right-of-way line, N13°36°22'W, 145.48 feet to the SW corner of said Lot 12 of said Block 4; thence N85°56°04"E along the South lines of Lots 22 and 21 of said Block 22, 300.80 feet to the SE corner of said Lot 21; thence N1°41°54'W along the West line of said Lot 21, 145.00 feet to the Point of BEGINNING of this parcel description, containing 2.68 acres, more or less.

Has caused the same to be surveyed and platted into EDGAR SUBDIVISION, A REPLAT OF A PORTION OF LOT 9, BLOCK 4 VIEW POINT NORTH 2ND FILING, does hereby declare the subdivision of said land as it appears on this plat to be thier free act and deed and in accordance with their desires, and do hereby grant the easements for the purposes indicated hereon.

Daniel S. Edgar

Jeanne M. Edgar

**Daniel S. Edgar, Owner**

Jeanne M. Edgar

### **ACKNOWLEDGEMENT:**

[illegible]

The dedication instrument was acknowledged before me this \_\_\_\_\_ day of \_\_\_\_\_, 2024

NOTARY PUBLIC, LARAMIE COUNTY, WYOMING  
MY COMMISSION EXPIRES \_\_\_\_\_

**GENERAL NOTES:**

1. BASIS OF AZIMUTH - CITY OF CHRYEENNE DATUM, REFERENCED FROM STATION "BRAEHLIN" AND "SUNNYSIDE".
2. TOPO SURVEY CONDUCTED BY INBERG-MILLER ENGINEERS IN MAY, 2024.
3. TOTAL SUBDIVISION AREA IS 2.73 ACRES±
4. ZONING TO REMAIN UNCHANGED AS MEDIUM DENSITY RESIDENTIAL
5. SUBJECT PROPERTY IS IN AN AREA OF MINIMAL FLOOD HAZARD, ZONE X AS SHOWN ON FIRM MAP 56021C1092F, EFFECTIVE APRIL 14, 2011.
6. NO LAND IS PLANNED TO BE DEDICATED TO PUBLIC FACILITY.
7. NO CENTRAL OPEN SPACE AREAS ARE PLANNED.
8. THERE ARE NO BLOCKS ASSOCIATED WITH THIS PLAT.
9. THERE IS NO PROPOSED PHASING FOR THE SUBDIVISION.
10. DRAINAGE EASEMENTS SHALL BE OWNED AND MAINTAINED BY THE HOA.

**VACATION STATEMENT:**

IT IS THE INTENT OF THIS REPEAT TO VACATE THE 8' UTILITY EASEMENT ALONG THE NORTH AND WEST LINES OF PANORAMA DRIVE AND THE DRAINAGE DETENTION AREA ORIGINALLY ESTABLISHED BY VIEW POINT NORTH, 2ND FILING.

| EASEMENT LINE TABLE |        |             |
|---------------------|--------|-------------|
| LINE #              | LENGTH | DIRECTION   |
| L1                  | 36.77  | S15°34'41"E |
| L2                  | 75.62  | S41°21'28"E |
| L3                  | 19.08  | S0°28'39"W  |
| L4                  | 21.94  | S21°26'43"W |
| L5                  | 77.93  | S40°29'16"W |

| EASEMENT LINE TABLE |        |             |
|---------------------|--------|-------------|
| LINE #              | LENGTH | DIRECTION   |
| L6                  | 21.04  | S31°01'16"W |
| L7                  | 38.56  | N18°30'37"W |
| L8                  | 201.74 | N88°14'45"E |
| L9                  | 154.62 | N31°13'11"E |
| L10                 | 104.40 | S88°21'39"W |

| CURVE TABLE |        |        |       |                 |              |
|-------------|--------|--------|-------|-----------------|--------------|
| CURVE #     | LENGTH | RADIUS | DELTA | CHORD DIRECTION | CHORD LENGTH |
| C1          | 264.21 | 170.16 | 88.97 | S43° 50' 48"W   | 238.46       |

## ***APPROVALS***

Approved by the City of Cheyenne Planning Commission, this \_\_\_\_ day of \_\_\_\_\_, 2024.

## Planning & Development Director

Approved by the City Council of the City of Cheyenne, Wyoming, this \_\_\_\_\_ day of \_\_\_\_\_, 2024.

Mayor - Patrick Collins

ATTEST: \_\_\_\_\_  
Kristina Jones-City Clerk

### LEGEND

- |                                                                                       |                                                                 |
|---------------------------------------------------------------------------------------|-----------------------------------------------------------------|
|  | FOUND ALUMINUM CAP                                              |
|  | CITY OF CHEYENNE CONTROL MONUMENT                               |
|  | 2" ALUMINUM CAP SET ON<br>3/4" x 24" REBAR STAMPED IME PLS 5134 |
|  | PROPERTY LINE                                                   |
|  | EASEMENT LINES                                                  |
|  | ADJACENT CONTROL LINE                                           |
|  | RIGHT-OF-WAY LINES                                              |
|  | RIGHT-OF-WAY LINE                                               |

**STATEMENT OF SURVEYOR**

I, Randall S. Stelzner, a Professional Land Surveyor of the State of Wyoming, do hereby state that this plat is a true, complete and correct representation of the Edgar Subdivision, A Replat of a Portion of Lot 9, Block 4, View Point North 2nd Filing as laid out, dedicated and shown hereon, that such plat was made from an accurate survey of said property under my supervision and correctly shown the location and dimensions of the lots, easements, and streets of said subdivision as the same are staked upon the ground in compliance with the City of Cheyenne subdivision regulations governing the subdivision of land.

In witness whereof, I have set my hand and seal this \_\_\_\_\_ day of \_\_\_\_\_, 2024.

Randall S. Stelzner  
Registered Land Surveyor

Number: LS 5134

In witness whereof, I have set my hand and seal this \_\_\_\_\_ day of \_\_\_\_\_, 2024.

Subscribed and sworn to before me this \_\_\_\_\_ day of \_\_\_\_\_, 2024, by Randall S. Stelzner.

[illegible]

The dedication instrument was acknowledged before me this \_\_\_\_\_ day of \_\_\_\_\_, 2024

NOTARY PUBLIC, LARAMIE COUNTY, WYOMING  
MY COMMISSION EXPIRES



Know what's **below**.  
**Call** before you dig.

# PRELIMINARY PLAT OF EDGAR SUBDIVISION

A REPLAT OF A PORTION OF LOT 9, BLOCK 4,

VIEW POINT NORTH 2ND FILING

CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

**INBERG-MILLER ENGINEERS**  
350 Parsley Boulevard  
Cheyenne, Wyoming 82007  
(307)635-6827  
Drawn by TDF/MDH  
Brooke L. Bulgrin, P.E.  
Randall S. Stelzner, P.L.S.



DATE: 6/10/2024 24077-HS  
FILE: \\24077-HE Preliminary Plat.dwg



A COMMUNITY OF CHOICE

## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

### CITY OF CHEYENNE PLANNING COMMISSION

SEPTEMBER 3, 2024

#### STAFF REPORT

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**FILE:** PUDC-24-106: Edgar Subdivision, (Expedited Review)

**REQUEST:** A final plat subdividing the property into 12 lots.

**LOCATION:** 5192 Panorama Drive, Cheyenne, Wyoming.

**APPLICANT:** Brooke Bulgrin

**OWNER:** Daniel and Jeanne Edgar

**ZONING:** MR Medium Density Residential

**PURPOSE:** To divide the lot into 12 separate lots to be developed into 12 single family or duplex units.

**PREPARED BY:** Athen Mores, Planner I



**RECOMMENDED MOTION:**

Move to recommend the Governing Body **approve** the Edgar Subdivision Expedited Plat with staff exceptions and conditions.

**APPLICABLE CITY CODE SECTION(S) AND PLANS:**

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

**BACKGROUND:**

This site was originally designed specifically for drainage. However, the drainage plan was reconfigured. Due to these changes the property is now available for development. The development requested is to final plat 12 single-unit residential lots on this site.

**SURROUNDING LAND USE AND ZONING:**

|                     | <b>Future Land Use Designation</b> | <b>Zoning</b>                 | <b>Land Use</b>                      |
|---------------------|------------------------------------|-------------------------------|--------------------------------------|
| <b>Subject Site</b> | UR Urban Residential               | MR Medium Density Residential | Single Family Residential            |
| <b>North</b>        | UR Urban Residential               | MR Medium Density Residential | Single Family Residential            |
| <b>South</b>        | UR Urban Residential               | MR Medium Density Residential | Single Family Residential            |
| <b>East</b>         | UR Urban Residential               | MR Medium Density Residential | Single Family Residential and Vacant |
| <b>West</b>         | UR Urban Residential               | MR Medium Density Residential | Single Family Residential and Vacant |

**ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:**

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

**1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)**

This development is in conformance with the principles and future land uses identified in PlanCheyenne. The property is within the Urban Service Boundary and has access to all utilities. The future land use map within PlanCheyenne identifies this area as developing with u=Urban Residential development. This is an infill opportunity which the comprehensive plan encourages. The comprehensive plan encourages development in existing stable neighborhoods to be compatible with the current development. This proposal is consistent with current development patterns.

The application **complies** with this review criterion.

- 2) **The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)**

The proposed plat divides the land into 12 lots that will develop 12 single family residential units. Currently the property is accessible by Panorama Drive, and this access will not be changing. These developments will match the exiting characteristics of the neighborhood being similar in size and use.

The application **complies** with this review criterion.

- 3) **The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)**

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees. The acreage in the plat is 2.7 acres

|                                                         |                  |
|---------------------------------------------------------|------------------|
| Land Acquisition Fee                                    | \$945.00         |
| Infrastructure Fee                                      | \$945.00         |
| <b>Total Land Acquisition &amp; Infrastructure Fees</b> | <b>\$1890.00</b> |

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Residential Enhancement Fee      \$400 per dwelling unit

Transportation Network (4.3):

This plat is occurring within an area of the community that has been previously developed. There is limited opportunity to modify the street network. The block this plat is occurring on is oversized however, due to topography and previous development there is no opportunity for this proposal to add a connection. Staff recommends an exception to block size be granted.

Open Space (4.4):

Single family residential development under 10 acres is exempt from providing open space during the platting action.

Required Improvements (4.5):

Lot 41 may have issues getting water service depending on the location of the structure built on the lot. This plat otherwise appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any commercial building or residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

Drainage was reviewed and all issues have been addressed.

Traffic:

A traffic study was submitted and reviewed. There were no concerns with the study provided.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

This plat is proposing 12 buildable lots into that we be developed into 12 single family homes or town houses. The lots will continue to be zoned MR for residential uses. The proposed lot size would be a buildable lot for that zone district. Lot 35 appears to be between 38' and 39' wide at the front setback line. This would limit this lot to duplex development (and one neighboring lot). The plat contains significant topographical changes, which may make development on individual lots difficult. However, it appears with the right engineering, these lots can be buildable.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

There are no unbuildable lots proposed in this plat. There are changes in the topography across the property, but they are not significant enough to affect building.

The application **complies** with this review criterion.

- 8) **The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

This plat will not create any undue influence on existing or potential development. The plat proposes dividing one lot into 12 smaller lots, with no major street connections, zoning or use changes, currently.

The application **complies** with this review criterion.

**9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

City staff is satisfied that this proposed plat would otherwise not adversely affect the public health, safety, or general welfare. Due to the topography individual buildings will need to be carefully sited.

The application **complies** with this review criterion.

**10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

No remainder lots are proposed.

The application **complies** with this review criterion.

**11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

**12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)**

Through the review process and application of the Preliminary Plat, Staff recommends minor corrections as conditions to the plat. These corrections should be resolved prior to the final plat being recorded. The applicant is aware of the changes that are needed and will submit a final plan of the fixed issues before mailing.

The application **complies** with this review criterion, with conditions.

**13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)**

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

**CONFORMANCE WITH APPLICABLE PLANS:**

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The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

**STAFF REVIEW:**

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Through the review process, comments were received regarding the following issues:

1. Technical Corrections.
2. Lot sizes and limiting development
3. Drainage easement
4. Block Size
5. Sidewalk

**CONCLUSION:**

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Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant with conditions.

**ALTERNATIVES:**

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1. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
2. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
5. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

**STAFF RECOMMENDATION:**

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Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following exceptions and conditions:

1. Exception:
  - a. Exception to block size.
2. Prior to recording:
  - a. Add owners' names to the notary.

**ATTACHMENTS:**

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1. Engineering Memo
2. Zoning Map
3. Land Use Plan Map
4. Master Application Form
5. Preliminary Plat
6. Final Plat



A COMMUNITY OF CHOICE

**CITY ENGINEER'S OFFICE**  
2101 O'Neil Avenue  
Cheyenne, Wyoming 82001

## MEMO

**TO:** City of Cheyenne Planning Commission Members

**FROM:** Cassie Pickett, PE 

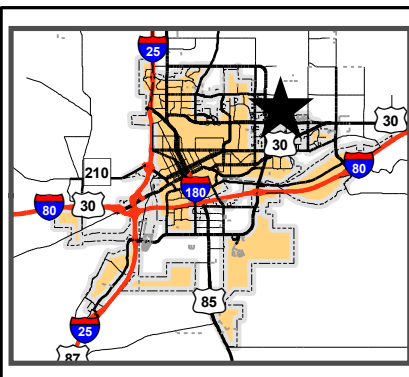
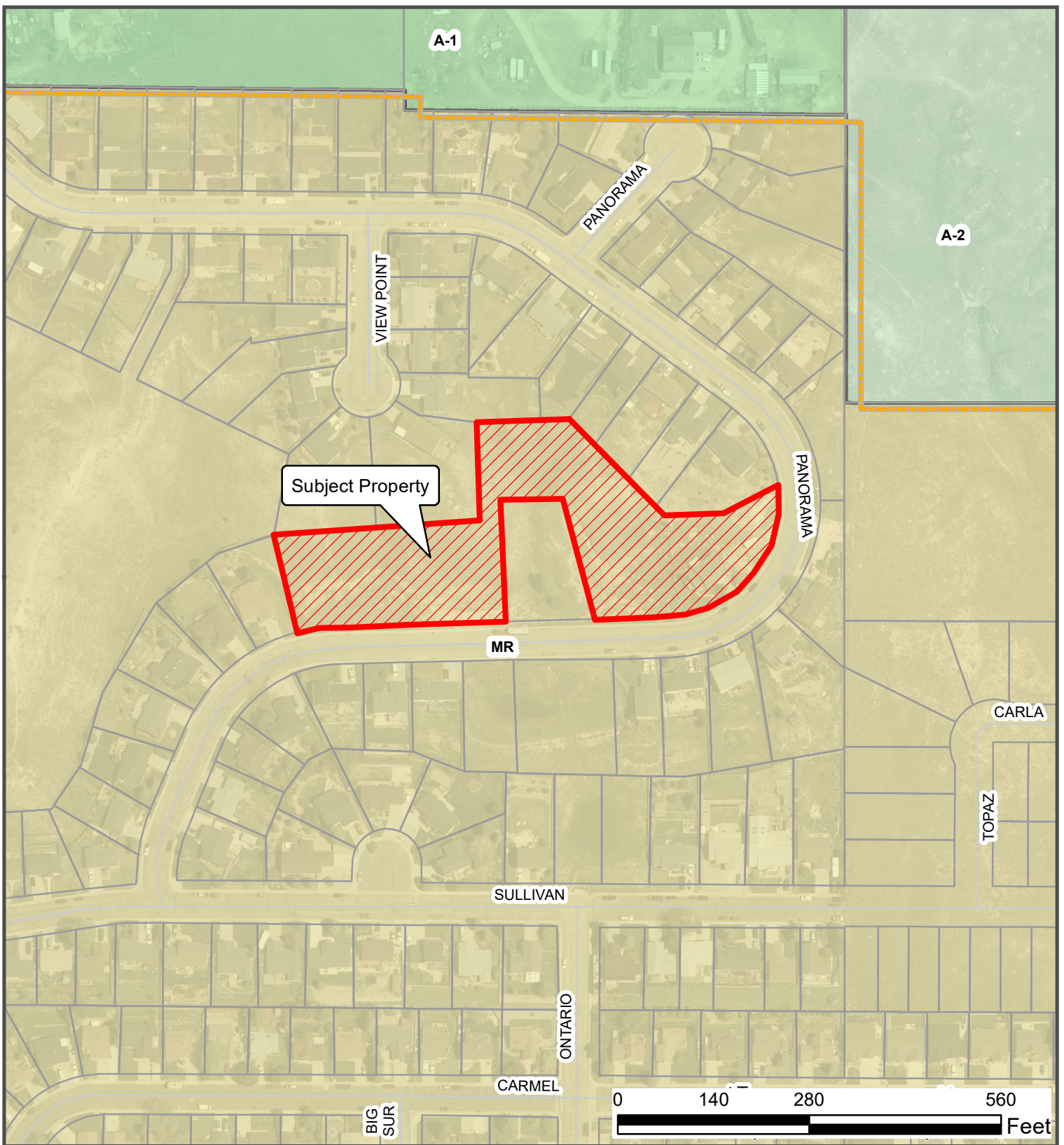
**DATE:** August 23, 2024

**SUBJECT:** Edgar Subdivision PUDC-24-106 Expedited Plat

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### Edgar Expedited Plat Note:

There is currently a Site and Engineering Plan (PUDC-24-105) for Edgar Subdivision. This Engineering Plan review is in progress and will review all concerns regarding Traffic, Drainage, Right-of-Way and any earthwork/soil considerations. Any engineering concerns will be required to be mitigated prior to Green Stamped Plans, so no construction will take place until the Engineering Plans have been reviewed and Green Stamped by the City Engineer's Office. The Engineer's Office has no additional comment regarding the Edgar Subdivision Expedited Plat. The proposed development is viable assuming all requirements made by the Engineer's Office are addressed.

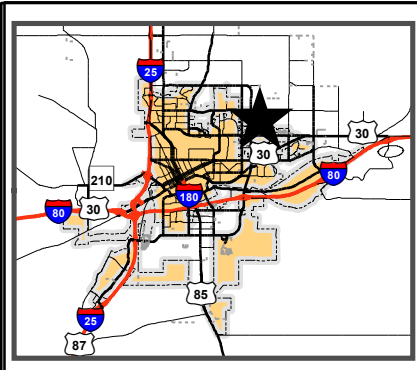
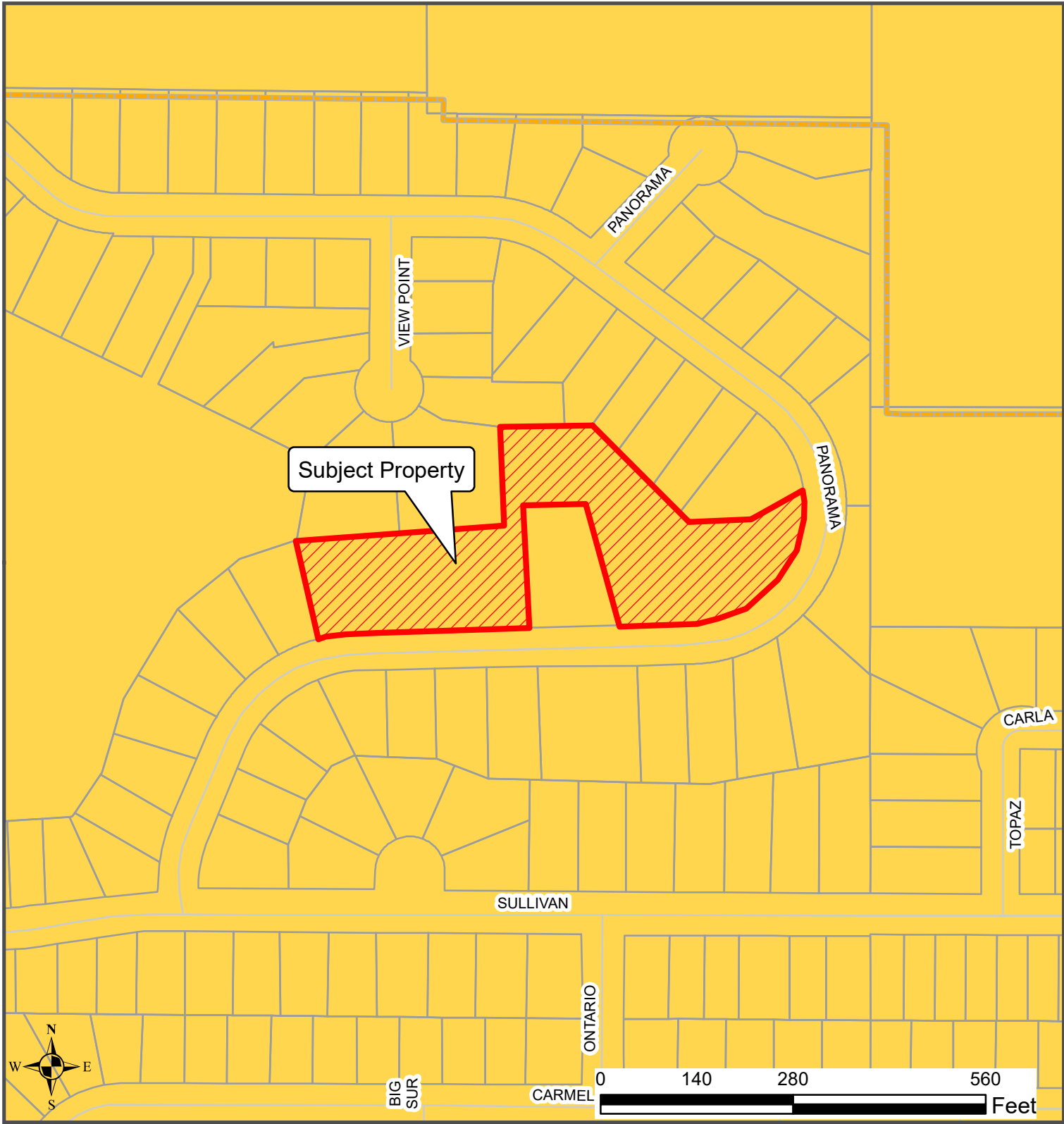


# Attachment 1: Zoning Map PUDC-24-106

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

## Legend

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>Nov19_CityLimits</li> <li>Interstate</li> <li>Principal Arterial</li> <li>Minor Arterial</li> <li>Major Collector</li> <li>Minor Collector</li> <li>Local</li> <li>Private</li> <li>Platted not built</li> <li>HR / High Density Residential</li> <li>MR / Medium Density Residential</li> <li>LR / Low Density Residential</li> <li>NR-2 / Neighborhood Residential - Med. Density</li> <li>NR-3 / Neighborhood Residential - High Density</li> <li>AR / Agricultural Residential</li> </ul> | <ul style="list-style-type: none"> <li>A-1 / Agricultural and Rural Residential</li> <li>A-2 / Agricultural</li> <li>AG / City Agricultural</li> <li>MUR / Mixed Use Residential Emphasis</li> <li>CBD / Central Business District</li> <li>CB / Community Business</li> <li>NB / Neighborhood Business</li> <li>MU / Mixed Use - County</li> <li>MUB / Mixed Use Business Emphasis</li> <li>MUE / Mixed Use Employment Emphasis</li> <li>HI / Heavy Industrial</li> <li>LI / Light Industrial</li> <li>P / Public</li> <li>AD / Airport District</li> <li>PUD / Planned Unit Development</li> <li>X / Exempt</li> </ul> |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|



## Attachment 2: Land Use Map PUDC-24-106

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

# Legend

|                                                                                     |                    |                                                                                       |                              |                                                                                       |                           |
|-------------------------------------------------------------------------------------|--------------------|---------------------------------------------------------------------------------------|------------------------------|---------------------------------------------------------------------------------------|---------------------------|
|  | City Limits        |  | Agricultural/Rural           |  | Industrial                |
|  | Interstate         |  | Rural Residential            |  | Central Business District |
|  | Principal Arterial |  | Urban Transition Residential |  | Community Business        |
|  | Minor Arterial     |  | Urban Residential            |  | Public and Quasi-Public   |
|  | Major Collector    |  | Mixed-Use Residential        |  | Military/Federal          |
|  | Minor Collector    |  | Mixed-Use Commercial         |  | Open Space and Parks      |
|  | Local              |  | Mixed-Use Employment         |                                                                                       |                           |
|  | Private            |                                                                                       |                              |                                                                                       |                           |
|  | Platted not built  |                                                                                       |                              |                                                                                       |                           |
|  | Ownership          |                                                                                       |                              |                                                                                       |                           |



Cheyenne, WY

July 29, 2024

**PUDC-24-106**

Plat - Expedited

Status: Active

Submitted On: 6/12/2024

**Primary Location**5192 PANORAMA DR  
Cheyenne, WY 82009**Owner**EDGAR, DANIEL S ET UX  
5192 PANORAMA DR  
CHEYENNE, WY 82009**Applicant**

Brooke Bulgrin  
 307-635-6827  
 bbulgrin@inberg-miller.com  
 350 Parsley Blvd  
Cheyenne, WY 82007

## Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.\*



I acknowledge the that Expedited status is not guaranteed.\*

**Written Statement\* ?**

A proposal to subdivide a 2.73 Acre lot in the View Point North 2nd Filing. The proposed subdivision includes 12 lots.

**Project Name\* ?**

Edgar Subdivision

**Plat Title\* ?**

Edgar Subdivision

Current Subdivision\* ?

View Point North 2nd Filing

Project area (acres)\*

2.73

Proposed Lots\* ?

12

Pre-application Meeting Date

03/27/2024

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.\*



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.\* ?

Owner(s) (or developers) behind the plat application will execute a sperate instrument for the needed infrastructure.

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## Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).\*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).\*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).\*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).\*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).\*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).\*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).\*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).\*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).\*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).\*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).\*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).\*



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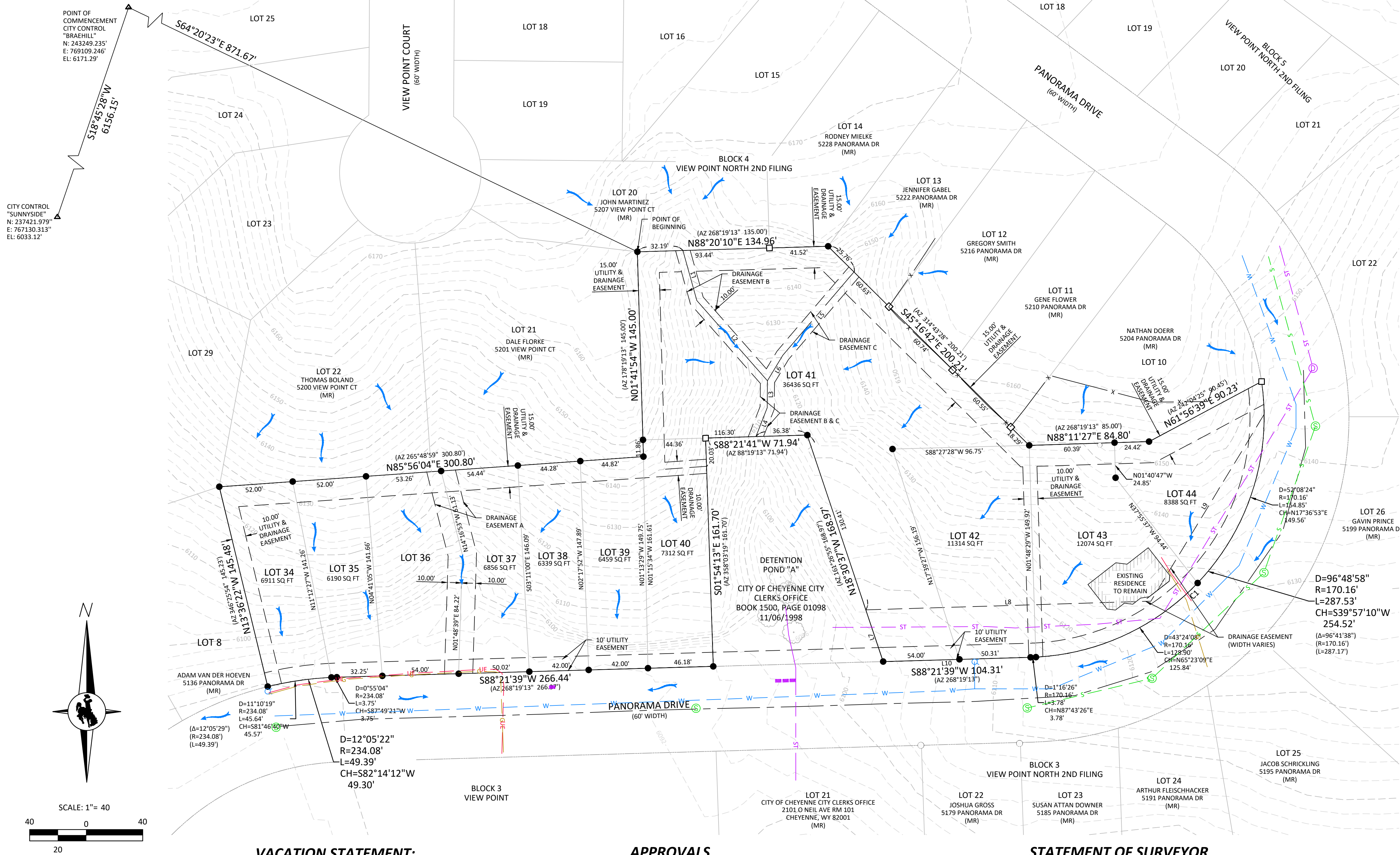
## Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.\*



Brooke Bulgrin

Jun 12, 2024



LOCATION MAP  
SCALE: 1" = 500'

### DEDICATION

Know all men by these presents that Edgar, Daniel S and Edgar, Jeanne M owner in fee simple of a portion of Lot 9, Block 4, View Point North 2nd Filing, located in the NE1/4SE1/4 of Section 22, T.14N., R.66W., 6th P.M., City of Cheyenne, Laramie County, Wyoming, said parcel more particularly described as follows: the following described property:

Commencing at City of Cheyenne Control Monument "Braehill", thence S64°20'23"E, 871.67 feet to a NE corner of said Lot 9, being a found aluminum cap monument and the POINT OF BEGINNING of this parcel description; thence N88°20'10"E along the South lines of Lots 20 and 14 of said Block 4 of said View Point North 2nd Filing, 134.96 feet to the SW corner of Lot 13 of said Block 4; thence S45°16'42"E along the South lines of Lots 13, 12, 11 and 10 of said Block 4, 200.21 feet to an angle point on the South line of Lot 10, said Block 4; thence continue along said South line the following two courses: N88°11'237"E, 84.80 feet; thence N61°56'39"E, 90.23 feet to intersect the Westerly right-of-way line of Panorama Drive; thence along said Westerly right-of-way line on an arc of a non-tangent curve to the right 287.53 feet, said curve having a radius of 170.16 feet, central angle of 96°48'58" and a chord bearing S39°57'10"W, 254.52 feet; thence S88°21'39"W along said Northerly right-of-way line, 104.31 feet; thence departing said Northerly right-of-way line, N18°30'37"W, 168.97 feet; thence S88°21'41"W, 71.94 feet; thence S1°54'13"E, 161.70 feet to a point on said Northerly right-of-way line, thence S88°21'39"W, 266.44 feet to a point of curvature; thence continuing along said Northerly right-of-way line on an arc of a tangent curve to the left 49.39 feet, said curve having a radius of 234.08 feet, central angle of 12°05'22" and a chord bearing S82°14'12"W, 49.30 feet to a point; thence departing said Northerly right-of-way line, N13°36'22"W, 145.48 feet to the SW corner of Lot 22 of said Block 4; thence N85°56'04"E along the South lines of Lots 22 and 21 of said Block 4, 300.80 feet to the SE corner of said Lot 21; thence N1°41'54"W along the West line of said Lot 21, 145.00 feet to the Point of Beginning of this parcel description, containing 2.68 acres, more or less.

Has caused the same to be surveyed and platted into EDGAR SUBDIVISION, A REPLAT OF A PORTION OF LOT 9, BLOCK 4 VIEW POINT NORTH 2ND FILING, does hereby declare the subdivision of said land as it appears on this plat to be their free act and deed and in accordance with their desires, and do hereby grant the easements for the purposes indicated hereon.

Daniel S. Edgar  
Daniel S. Edgar, Owner

Jeanne M. Edgar  
Jeanne M. Edgar, Owner

### ACKNOWLEDGEMENT:

STATE OF WYOMING )  
COUNTY OF LARAMIE ) ss

The dedication instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_, 2024

NOTARY PUBLIC, LARAMIE COUNTY, WYOMING  
MY COMMISSION EXPIRES \_\_\_\_\_

### VACATION STATEMENT:

IT IS THE INTENT OF THIS REPLAT TO VACATE THE 8' UTILITY EASEMENT ALONG THE NORTH AND WEST LINES OF PANORAMA DRIVE AND THE DRAINAGE DETENTION AREA ORIGINALLY ESTABLISHED BY VIEW POINT NORTH, 2ND FILING.

### APPROVALS

Approved by the City of Cheyenne Planning Commission, this \_\_\_\_ day of \_\_\_\_\_, 2024.

Planning & Development Director \_\_\_\_\_

Approved by the City Council of the City of Cheyenne, Wyoming, this day of \_\_\_\_\_, 2024.

Mayor - Patrick Collins \_\_\_\_\_ ATTEST: Kristina Jones-City Clerk \_\_\_\_\_

### STATEMENT OF SURVEYOR

I, Randall S. Stelzner, a Professional Land Surveyor of the State of Wyoming, do hereby state that this plat is a true, complete and correct representation of the Edgar Subdivision, A Replat of a Portion of Lot 9, Block 4, View Point North 2nd Filing as laid out, dedicated and shown hereon, that such plat was made from an accurate survey of said property under my supervision and correctly shown the location and dimensions of the lots, easements, and streets of said subdivision as the same are staked upon the ground in compliance with the City of Cheyenne subdivision regulations governing the subdivision of land.

In witness whereof, I have set my hand and seal this \_\_\_\_ day of \_\_\_\_\_, 2024.

Randall S. Stelzner  
Registered Land Surveyor

Number: LS 5134

In witness whereof, I have set my hand and seal this \_\_\_\_ day of \_\_\_\_\_, 2024.

Subscribed and sworn to before me this \_\_\_\_ day of \_\_\_\_\_, 2024, by Randall S. Stelzner.

STATE OF WYOMING )  
COUNTY OF LARAMIE ) ss

The dedication instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_, 2024

NOTARY PUBLIC, LARAMIE COUNTY, WYOMING  
MY COMMISSION EXPIRES \_\_\_\_\_

### GENERAL NOTES:

- BASIS OF AZIMUTH - CITY OF CHEYENNE DATUM, REFERENCED FROM STATION "BRAEHILL" AND "SUNNYSIDE".
- TOPO SURVEY CONDUCTED BY INBERG-MILLER ENGINEERS IN MAY, 2024.
- TOTAL SUBDIVISION AREA IS 2.73 ACRES±
- ZONING TO REMAIN UNCHANGED AS MEDIUM DENSITY RESIDENTIAL
- SUBJECT PROPERTY IS IN AN AREA OF MINIMAL FLOOD HAZARD, ZONE X AS SHOWN ON FIRM MAP 56021C1092F, EFFECTIVE APRIL 14, 2011.
- NO LAND IS PLANNED TO BE DEDICATED TO PUBLIC FACILITIES
- NO CENTRAL OPEN SPACE AREAS ARE PLANNED.
- THERE ARE NO BLOCKS ASSOCIATED WITH THIS PLAT.
- THERE IS NO PROPOSED PHASING FOR THE SUBDIVISION
- DRAINAGE EASEMENTS SHALL BE OWNED AND MAINTAINED BY THE PROPERTY OWNER.

| EASEMENT LINE TABLE |        |             | EASEMENT LINE TABLE |        |             |
|---------------------|--------|-------------|---------------------|--------|-------------|
| LINE #              | LENGTH | DIRECTION   | LINE #              | LENGTH | DIRECTION   |
| L1                  | 36.77  | S15°34'41"E | L6                  | 21.04  | S31°01'16"W |
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| L5                  | 77.93  | S40°29'16"W | L10                 | 104.40 | S88°21'39"W |

| CURVE TABLE |        |        |       |                 |
|-------------|--------|--------|-------|-----------------|
| CURVE #     | LENGTH | RADIUS | DELTA | CHORD DIRECTION |
| C1          | 264.21 | 170.16 | 88.97 | S43° 50' 48"W   |
|             |        |        |       | CHORD LENGTH    |
|             |        |        |       | 238.46          |

### LEGEND

- FOUND ALUMINUM CAP
- CITY OF CHEYENNE CONTROL MONUMENT
- 2" ALUMINUM CAP SET ON 3/4" x 24" REBAR STAMPED IME PLS 5134
- PROPERTY LINE
- EASEMENT LINES
- BOUNDARY CENTER LINES
- ADJACENT LINES
- RIGHT-OF-WAY LINE



Know what's below.  
Call before you dig.

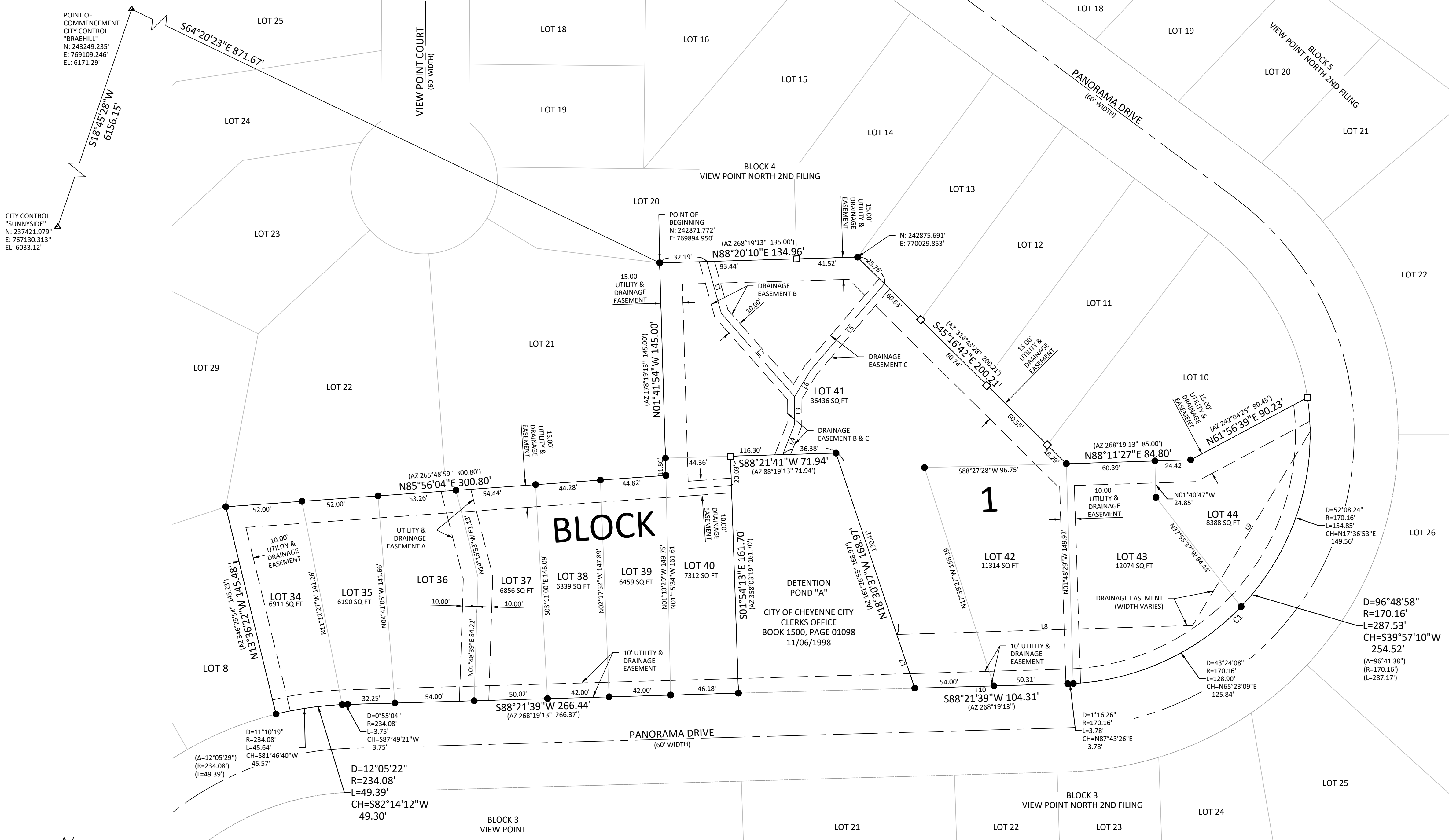
## PRELIMINARY PLAT OF EDGAR SUBDIVISION

A REPLAT OF A PORTION OF LOT 9, BLOCK 4,  
VIEW POINT NORTH 2ND FILING  
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

INBERG-MILLER ENGINEERS  
350 Parsley Boulevard  
Cheyenne, Wyoming 82007  
(307)635-6827  
Drawn by TDF/MDH  
Brooke L. Bulgrin, P.E.  
Randall S. Stelzner, P.L.S.



DATE: 6/10/2024 24077-HS  
FILE: I24077-HE Preliminary Plat.dwg



LOCATION MAP  
SCALE: 1" = 500'

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Daniel S. Edgar  
Jeanne M. Edgar

Daniel S. Edgar, Owner  
Jeanne M. Edgar, Owner

**ACKNOWLEDGEMENT:**

STATE OF WYOMING )  
COUNTY OF LARAMIE ) ss

The dedication instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_, 2024

NOTARY PUBLIC, LARAMIE COUNTY, WYOMING  
MY COMMISSION EXPIRES \_\_\_\_\_

**GENERAL NOTES:**

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**APPROVALS**

Approved by the City of Cheyenne Planing Commission, this \_\_\_\_ day of \_\_\_\_\_, 2024.

Planning & Development Director

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Mayor - Patrick Collins  
Kristina Jones-City Clerk

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Randall S. Stelzner  
Registered Land Surveyor

Number: LS 5134

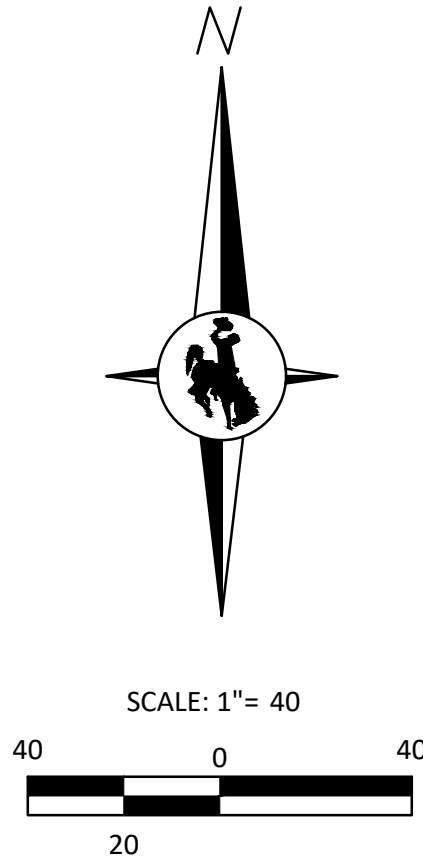
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STATE OF WYOMING )  
COUNTY OF FREMONT ) ss

The dedication instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_, 2024

NOTARY PUBLIC, LARAMIE COUNTY, WYOMING  
MY COMMISSION EXPIRES \_\_\_\_\_



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- ▲ CITY OF CHEYENNE CONTROL MONUMENT
- 2" ALUMINUM CAP SET ON 3/4" x 24" REBAR STAMPED IME PLS 5134
- PROPERTY LINE
- - - EASEMENT LINES
- - - EASEMENT CENTERLINE
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- RIGHT-OF-WAY LINE
- ( ) RECORD DATA

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**EDGAR SUBDIVISION**

A REPLAT OF A PORTION OF LOT 9, BLOCK 4,

VIEW POINT NORTH 2ND FILING

CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

INBERG-MILLER ENGINEERS  
350 Parsley Boulevard  
Cheyenne, Wyoming 82007  
(307) 635-6827  
Drawn by TDF/MDH  
Brooke L. Bulgrin, P.E.  
Randall S. Stelzner, P.L.S.



DATE: 6/10/2024 24077-HS  
FILE: \24077-HE Final Plat.dwg